

## TENTATIVE RULINGS

### LAW & MOTION

### DEPT C25

### Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

**August 04, 2026**

**10:00 AM**

If you want a transcript, you must provide your own court reporter.

| #   | Case Name                                                                         | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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| 101 | <b>Maimaitiyming vs. The Shops at Mission Viejo LLC</b><br><br><b>26-01553784</b> | <p>Demurrer to First Amended Complaint</p> <p>Defendant Shops at Mission Viejo, LLC ("Defendant") demurs to all causes of action alleged in the operative First Amended Complaint, which includes the: (1) first cause of action for declaratory relief, (2) second cause of action for breach of contract, (3) third cause of action for breach of quiet enjoyment, (4) fourth cause of action for breach of the implied covenant of good faith and fair dealing, (5) fifth cause of action for wrongful interference, coercion, concealment, misrepresentation, retaliation, harassment, and related wrongful conduct.</p> <p>Plaintiff Nijiati Maimaitiyming, proceeding <i>in pro per</i> ("Plaintiff") opposes the demurrer.</p> <p>The Court is persuaded by the arguments presented by Defendant in the Demurrer and therefore the Demurrer</p> |

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|  |  | <p>is SUSTAINED WITH LEAVE TO AMEND as to all causes of action.</p> <p>Based on the allegations in the operative First Amended Complaint, the Court finds the First Amended Complaint is uncertain as to whether Plaintiff has standing to pursue the causes of action alleged.</p> <p>For example, Plaintiff alleges a breach of contract cause of action but the allegations in the Complaint do not provide sufficient information to establish that Plaintiff and Defendant are in privity of contract. Plaintiff argues that “[a]s a guarantor recognized and defined by California statute, Plaintiff has both the legal status and the statutory authority to assert rights and defenses in this proceeding.”</p> <p>“A surety or guarantor is one who promises to answer for the debt, default, or miscarriage of another, or hypothecates property as security therefor.” (Civ. Code, § 2787.) Importantly, however, “[a] guarantor may validly waive rights and defenses in the guaranty contract.” (<i>Central Building, LLC v. Cooper</i> (2005) 127 Cal.App.4th 1053, 1059.) Thus, just because a party is a guarantor to a contract, does not necessarily mean that the party has rights under the contract. Plaintiff has not provided legal authority establishing otherwise.</p> <p>Moreover, case law is clear that “[i]f the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” (<i>Otworth v. Southern Pac. Transportation Co.</i> (1985) 166 Cal.App.3d 452, 458–459.)</p> <p>The Court notes that Plaintiff included the contract in the opposing papers. However, the Court is unable to consider the contract/lease in determining the merits of the demurrer because, in determining the merits of a demurrer, “we accept as true all the material facts</p> |
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properly pleaded and we do not go beyond the four corners of the complaint, except as to matters which may be judicially noticed.” (*Thorburn v. Department of Corrections* (1998) 66 Cal.App.4th 1284, 1287–1288 [emphasis added].) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation].” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)<sup>1</sup>

Given the caselaw above, the Court finds that Plaintiff has not sufficiently alleged the terms of the contract at issue or attached the contract at issue in the Complaint to establish that she was in privity of contract with Defendant and has the right to recover against Defendant pursuant to the contract.

In addition, the Court notes that the injuries that Plaintiff claims appear to be injuries to Nijat M. Abdukerim LLC dba Bab Hop Playground – not Plaintiff as an individual. For example, Plaintiff alleges that she was damaged because she lost money that she “personally invested in substantial funds, time, and resources into Nijat M. Abdukerim LLC [DBA: Baby Hop Playground] in reliance on the lease and the project moving forward.” Based on the allegations in the Complaint, Plaintiff’s business with Defendant was conducted on behalf of Nijat M. Abdukerim LLC and was not conduct in her individual capacity.

For these reasons, the Demurrer to the second cause of action for breach of contract is SUSTAINED WITH LEAVE TO AMEND.

Likewise, because Plaintiff’s allegations in the First Amended Complaint are uncertain as to the second cause of action for breach of contract, the third cause of action for breach of quiet enjoyment is uncertain as well since it is unclear what rights Plaintiff holds to the quiet enjoyment of the property at issue since it appears the rights to lease the property belonged to Nijat M. Abdukerim LLC, not Plaintiff as an individual. As

such, the Demurrer to the third cause of action for breach of quiet enjoyment is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff's fourth cause of action for breach of the implied covenant of good faith and fair dealing also depend on the validity of the breach of contract cause of action. "The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purposes." (*Berlanga v. University of San Francisco* (2024) 100 Cal.App.5th 75, 88, *reh'g denied* (Mar. 15, 2024); see also *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1393.) "Without a contractual relationship, [a plaintiff] cannot state a cause of action for breach of the implied covenant." (*Ibid.*) Given the above, the Demurrer to the fourth cause of action for breach of the implied covenant of good faith and fair dealing is SUSTAINED WITH LEAVE TO AMEND.

Last, in addition to the standing issues discussed above, the Court also finds that fifth cause of action for wrongful interference, coercion, concealment, misrepresentation, retaliation, harassment, and related wrongful conduct is also generally uncertain because the Complaint fails to separately state these causes of action. (Cal. Rules of Court, rule 2.112 and Code Civ. Proc., § 425.10.) Each of these legal theories must be separate stated and contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) As such, the Demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff's first cause of action for declaratory relief depend on the validity of the causes of action. For the reasons discussed above, the Demurrer to the first cause of action for declaratory relief is SUSTAINED WITH LEAVE TO AMEND.

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|            |                                                                                        | <p>Given the above, the Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND.</p> <p>The Court notes that Plaintiff did not file a proof of service for the opposition. This is improper. Plaintiff <b><u>MUST</u></b> serve Defendant and file a proof of service of any document filed with the Court pursuant to code.<sup>2</sup></p> <p>Moving Defendant to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>102</b> | <p><b>Bunker Hill Apartments, LLC vs. GMS Group Inc.</b></p> <p><b>25-01505195</b></p> | <p>Demurrer to Complaint</p> <p>Plaintiffs Bunker Hill Apartments LLC (“Bunker Hill”) and Tony Holder (“Holder” and collectively, “Plaintiffs”) demur to the Complaint in Intervention (“CII”) of Dr. Mohammed Khalid Haridy Ghafeer (“Ghafeer”).</p> <p>Claims Against Holder Individually</p> <p>Plaintiffs argue the CII does not allege facts to state a claim against Holder individually because it does not allege facts to plead alter ego or show that Holder himself participated in any misconduct.</p> <p>Plaintiffs themselves allege in their own Complaint that they entered into a valid and enforceable contract with GMS Group, Inc. (“GMS”) for the purchase of real property. Holder also asserts tort claims such as fraud and negligent misrepresentation arising out of the transaction. In the CII, Ghafeer alleges tort and contract claims against Bunker Hill and Holder based on the same facts and transaction. Holder cannot reasonably assert claims as a plaintiff in his individual capacity and argue at the same time that he was not involved in the transaction in his individual capacity. The two positions are wholly inconsistent. Thus, the Demurrer as to Holder individually is OVERRULED. (See Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th</p> |

1162, 1174 [court may take notice of inconsistent statements made by a party in earlier pleadings in the same lawsuit].)

#### First Cause of Action for Conversion

Plaintiffs argue this cause of action fails because the CII does not adequately plead Ghafeer’s immediate right to possession, that Bunker Hill or Holder took possession or appropriated the money at issue, or that Ghafeer has the contractual authority to compel release of the funds.

“‘The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages. . . .’ [Citation.]” (Hodges v. County of Placer (2019) 41 Cal.App.5th 537, 551.)

Here, Ghafeer alleges that he deposited the entire amount held in escrow by La Costa Escrow, Inc. (“La Costa”), he is entitled to immediate possession thereof due to Plaintiffs’ cancellation of the sale, Plaintiffs have expressed that they are entitled to the funds but have exercised wrongful dominion and control over the funds by refusing to direct La Costa to release the funds to GMS or Ghafeer. These allegations assert sufficient facts to support each element of the cause of action. They show Ghafeer’s claim of entitlement to possession of the funds, Plaintiffs’ wrongful acts in preventing Ghafeer from taking immediate possession, and Ghafeer’s damages. Thus, the Demurrer to the first cause of action is **OVERRULED**.

#### Second Cause of Action for Slander of Title

Plaintiffs contend this cause of action fails because the CII does not allege any publication disparaging title to real property or a recognized title interest in personal property.

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|  | <p>“To state a claim for slander of title, a plaintiff must allege ‘(1) a publication, (2) which is without privilege or justification,’ (3) which is false, and (4) which ‘causes direct and immediate pecuniary loss.’” (Scheper v. Capital One, N.A. (2017) 12 Cal.App.5th 1331, 1336.)</p> <p>Ghafeer alleges that Plaintiffs have defamed title of the funds held by La Costa by expressing to La Costa and GMS that the funds belong to Plaintiffs, this conduct has clouded the title to said funds and the claims made by Plaintiffs are not privileged and are false, and Ghafeer has been damaged by loss of possession and use of the funds. These allegations presume a publication made to La Costa and GMS by Plaintiffs. Thus, Plaintiffs’ contention that no publication is alleged lacks merit. Further, the allegations establish Ghafeer’s interest in the property, the lack of privilege or justification and falsity of the publication, and damages. Thus, the Demurrer to the second cause of action is <b>OVERRULED</b>.</p> <p>Third Cause of Action for Breach of Contract</p> <p>Plaintiffs argue this cause of action fails because Ghafeer was not the original buyer under the purchase agreement and there is no alleged valid assignment. Plaintiffs contend that a valid assignment could have only been obtained through written consent. They further contend that Ghafeer has not adequately alleged status as a third party beneficiary.</p> <p>Ghafeer alleges that Plaintiffs and GMS entered into the written contract for the same of property and GMS assigned to Ghafeer and Joseph Khadige its interest in the property. Ghafeer alleges on information and belief that Plaintiffs were notified about the assignment and Ghafeer and Khadige became intended third-party beneficiaries.</p> <p>The purchase agreement was entered into between GMS and Bunker Hill. Ghafeer was not a party to the</p> |
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|  | <p>contract. Paragraph 23 of the agreement provides, in relevant part:</p> <p>Buyer shall have the right to assign all of Buyer's interest in this Agreement to Buyer's own trust or to any wholly owned entity of Buyer that is in existence at the time of such assignment. Otherwise, Buyer shall not assign all or any part of Buyer's interest in this Agreement without first having obtained the separate written consent of Seller to a specified assignee.</p> <p>Paragraph 23 further requires that Buyer disclose the name of the assignee and the amount of any monetary consideration between Buyer and the assignee to Seller prior to any assignment.</p> <p>Ghafeer was not a party to the contract. Further, Ghafeer has not alleged sufficient facts showing that a valid and enforceable assignment was made to him by GMS. Thus, his breach of contract cause of action is untenable unless he has adequately alleged third-party beneficiary standing. Ghafeer argues that Plaintiffs' Demurrer is based on matters outside of the CII and that are not subject to judicial notice. However, Ghafeer's cause of action is based on the purchase agreement and, therefore, the purchase agreement becomes part of the CII and may be considered on demurrer. (Qualcomm, Inc. v. Certain Underwriters at Lloyd's, London (2008) 161 Cal.App.4th 184, 191.)</p> <p>Ghafeer further argues that the alleged assignment was not of rights under the purchase agreement but of rights to the property after the close of the sale, such that consent to the assignment was not required. This argument does not help save Ghafeer's breach of contract cause of action because Ghafeer is expressly alleging that Plaintiffs breached the purchase agreement, not some other agreement between Ghafeer and GMS. Thus, Ghafeer must allege facts showing that he has standing under the purchase agreement to support his cause of action.</p> |
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Civil Code section 1559 provides: “A contract, made expressly for the benefit of a third person, may be enforced by him [or her] at any time before the parties thereto rescind it.” “Expressly” means explicitly, definitely, and directly. (Schauer v. Mandarin Gems of Cal., Inc. (2005) 125 Cal.App.4th 949, 957-958.) “The contracting parties must have intended to confer a benefit on the third party.’ [Citation.] ‘The effect of the section is to exclude enforcement by persons who are only incidentally or remotely benefited.’” (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1022.)

Here, the agreement does not evince any intent of GMS or Bunker Hill to confer a benefit on Ghafeer and Ghafeer cannot rely on inadequate allegations of assignment to support third-party beneficiary standing. Further, Ghafeer’s third-party beneficiary allegations rest upon the allegation that assignment was made on May 19, 2025. This is after the purchase agreement was entered into on April 30, 2025. Any assignment made after GMS and Bunker Hill entered into the contract cannot be used to demonstrate that the parties entered into the contract with an intent to confer a benefit to Ghafeer. Thus, the Demurrer to the third cause of action is SUSTAINED with 20 days’ leave to amend.

#### Fourth Cause of Action for Declaratory Relief

Plaintiffs argue that this cause of action fails because it relies on defective standing, assignment, and ownership allegations and Ghafeer has no contractual escrow rights.

Ghafeer alleges that he is entitled to the funds but Plaintiffs also claim entitlement to the same and seeks a declaration regarding the controversy and a determination as to who is entitled to the funds. These allegations do not rest solely upon Ghafeer’s alleged standing under the purchase agreement. Instead, they also rely on Ghafeer’s allegations that he supplied the funds that were deposited into escrow, and he is

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|            |                                                       | <p>entitled to their return in light of Plaintiffs’ cancellation of the sale. Thus, Plaintiffs’ arguments against this cause of action lack merit and the Demurrer to the fourth cause of action is OVERRULED.</p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>103</b> | <p><b>Geer vs. Sims</b></p> <p><b>25-01508856</b></p> | <ol style="list-style-type: none"> <li>1. Demurrer to Complaint</li> <li>2. Motion to Strike Portions of Complaint</li> <li>3. Case Management Conference</li> </ol> <p>Defendant Mark Husum Sims (“Defendant”) demurs to the Complaint of plaintiffs Hannah Louise Geer and Melanie Danielle Marquis (“Plaintiffs”) on the ground that the intentional tort cause of action fails to allege sufficient facts. Defendant further moves to strike the claim for punitive damages.</p> <p>This action arises out of a June 7, 2024 vehicle collision that occurred while Plaintiffs were stopped at a red light. Plaintiffs allege that Defendant, while under the influence of alcohol, rear ended their vehicle. (Compl. at p. 6, ¶ 2.) Plaintiffs allege that the</p> <p>collision was of significant force and resulted in major damages to Plaintiffs and Plaintiffs’ vehicle, which Defendant knew or reasonably should have known would cause injuries to Plaintiffs. (Ibid.) After the impact, Defendant immediately intentionally fled the scene of the incident, despite personally observing the serious injuries to Plaintiffs. (Id. at p. 6, ¶ 3.)</p> <p>Intentional Tort</p> <p>“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart</p> |

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|  | <p>Title Guaranty Co. (1998) 19 Cal.4th 26, 38 as modified (Sept. 23, 1998).)</p> <p>Here, Plaintiffs contend that the cause of action pled under the heading “intentional tort” states a claim for intentional infliction of emotional distress.</p> <p>Defendants contend that the cause of action has not been sufficiently pled because Plaintiffs have not pled outrageous conduct or an intent to cause Plaintiffs severe emotional distress.</p> <p>The elements of a cause of action for intentional infliction of emotional distress are: “ “ “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” ’ ’ ’ ” (Potter v. Firestone Tire &amp; Rubber Co. (1993) 6 Cal.4th 965, 1001.) Typically, conduct qualifies as “outrageous” when it is so “ “ “extreme as to exceed all bounds of that usually tolerated in a civilized community.” ’ ’ ’ ” (Ibid.) “In order to avoid a demurrer, the plaintiff must allege with ‘great[ ] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.)</p> <p>“There is no bright line standard for judging outrageous conduct and “ ‘ . . . its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser’s values, sensitivity threshold, and standards of civility. The process evoked by the test appears to be more intuitive than analytical . . . .’ [Citation.]” [Citation.]’ Even so, the appellate courts have affirmed orders which sustained demurrers on the ground that the defendant’s alleged conduct was not</p> |
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sufficiently outrageous.” (Cochran v. Cochran (1998) 65 Cal.App.4th 488, 494.)

Here, Plaintiffs do not merely allege that Defendant was driving under the influence. Plaintiffs alleges that Defendant also immediately fled the scene even after observing the serious damages caused to Plaintiffs’ vehicle and serious injury to Plaintiffs. These additional allegations of facts go beyond what courts have found to be not sufficiently outrageous. (See, e.g. Cochran, 65 Cal.App.4th at p. 497 [holding vague voicemail left by the respondent, which appellants viewed as a threat but which lacked immediacy and clear meaning, insufficient]; Ankeny v. Lockheed Missiles & Space Co. (1979) 88 Cal.App.3d 531, 535-536 [holding allegations of personal verbal insults, being passed over for promotion, and being assigned inappropriate job tasks insufficient]; Schneider v. TRW, Inc. (9th Cir. 1991) 938 F.2d 986, 992-993 [holding allegations of screaming, yelling, and threatening gestures insufficient].)

Defendant’s argument that the cause of action fails because no intent to cause emotional distress is alleged lacks merit. Intent is not required where it is alleged that the defendant acted with reckless disregard of the probability of causing emotional distress. The facts support the element of reckless disregard here.

Lastly, Defendant’s argument that there are no allegations of Plaintiffs suffering severe emotional distress also fails. Plaintiffs allege they sustained great emotional disturbance and shock to their nervous systems, all of which caused and continue to cause severe mental and emotional pain and suffering.

Thus, the Demurrer to the intentional infliction of emotional distress cause of action is **OVERRULED**.

**Punitive Damages**

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|  |  | <p>Defendant moves to strike the claim for punitive damages on the ground that the Complaint alleges only conclusory allegations regarding malice, oppression, or fraud and, further, there are no facts alleged that show that the conduct that caused the injury or damage (driving under the influence) was done with malice. Defendant contends that allegations that he fled the scene after the impact are irrelevant because the injury had already occurred.</p> <p>“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citations.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)</p> <p>To support exemplary damages, the complaint must allege facts of defendant’s oppression, fraud, or malice, as required by Civil Code section 3294. (Civil Code, § 3294(a); College Hospital Inc. v. Superior Court (1994) 8 Cal. 4th 704, 721; Turman v. Turning Point of Central Calif., Inc. (2010) 191 Cal.App.4th 53, 63.) “Malice” is defined as conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civil Code, § 3294(c)(1).) “Oppression” is defined as despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code, § 3294(c)(2).)</p> <p>“ ‘Despicable conduct’ is defined [in jury instructions] as ‘conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.’ Such conduct has been described as ‘[having] the character of outrage frequently associated with</p> |
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crime.’ ” (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

In Dawes v. Superior Court (1980) 111 Cal.App.3d 82, a bicyclist was struck by an automobile driven by Mardian and filed suit seeking, among other things, punitive damages. The trial court struck the claim for punitive damages and the court of appeal reversed. The court of appeal noted that the “[p]etitioners alleged a good deal more than Mardian’s decision to drive and his driving in an intoxicated condition. They alleged that ‘with knowledge that probable serious injury would result to persons in the area,’ Mardian ran a stop sign, and was zigzagging in and out of traffic at a speed in excess of 65 miles per hour in a 35 mile per hour zone at the entrance to a popular recreation area on a Sunday afternoon when many pedestrians and bicyclists were in the immediate vicinity. They also alleged that immediately after the accident Mardian and his passenger falsely reported to the police that the passenger was driving rather than Mardian. If these allegations were proved at trial, the factfinder could reasonably find that Mardian acted with ‘malice’—with a conscious disregard of safety and the probable injury of others as a result of his conduct.” (Id. at pp. 88-89.)

The Dawes court was careful to note that it did “not agree that the risk created generally by one who becomes intoxicated and decides nevertheless to drive a vehicle on the public streets is the same as the risk created by an intoxicated driver's decision to zigzag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June. The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable. The risk of injury to others from Mardian's conduct under the circumstances alleged was probable.” (Id. at 89.)

Here, Plaintiffs have only alleged that Defendant was under the influence of alcohol and intentionally and willfully fled the scene without identifying themselves

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|            |                                                               | <p>to Plaintiffs. (Compl. at p. 7, ¶ 2.) The allegation of driving under the influence is the type of conduct Dawes expressed was not the same as the type of conduct that supported a potential punitive damage award. Further, there are no factual allegations that would support a finding that Defendant’s decision to leave the scene created a probable risk of injury to Plaintiffs, such that a trier of fact could find that Defendant’s act constituted a willful and conscious disregard to the safety of Plaintiffs.</p> <p>Accordingly, the Motion to Strike is GRANTED with 20 days leave to amend.</p> <p>Moving Party to give notice</p>                                                                                                                                                                                                                                                                                                                  |
| <b>104</b> | <p><b>Bonakdar vs. Bonakdar</b></p> <p><b>25-01527577</b></p> | <p>1. Demurrer to Complaint</p> <p>Defendant Zinab Bonakdar aka Sofia Bonakdar (“Defendant”) demurs to Plaintiff Zahra Bonakdar’s (“Plaintiff”) Complaint. The Complaint contains one cause of action for declaratory relief.</p> <p>Plaintiff failed to oppose the demurrer.</p> <p>Based on the non-opposition, the Court may “deem plaintiff[] to have abandoned the issues” or “claims” addressed in the Demurrer. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) The non-opposition is consider an implied concession to the merit of Defendants’ arguments presented in the Demurrers and Motions to Strike. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that</p> |

“by failed to address” an issue, the issue is “impliedly concede[d].”]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

The Court will allow Plaintiff an opportunity to cure any deficiencies in the Complaint. As such, the Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND.

If a First Amended Complaint is not timely filed within 20 days of this order, the Court will consider the case abandoned and the Case will be dismissed.

Plaintiff to give notice.

## 2. Motion to Expunge Lis Pendens x 2

Defendant Zinab Bonadkar aka Sofia Bonadkar (“Defendant”) filed two motions to expunge lis pendens. In the motions, Defendant seeks to expunge the lis pendens on the following properties: (1) 18 Narbonne, Newport Beach, California, 92660 and (2) 15062 Lorenat Street, Irvine, California, 92604. Plaintiff seeks \$4,015 in attorney fees for the Newport property and \$4,015 in attorney fees for the Irvine property.

Plaintiff untimely opposed the Motion. The Court, however, will consider the untimely opposing papers. “[A] trial court has broad discretion to accept or reject late-filed papers.” (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline



without a prior court order finding good cause for late submission.”].)

In addition, the Court notes that Plaintiff has not established that the opposing papers were properly served. There are no proofs of service filed with the opposing papers. The Court also notes that pursuant to Code of Civil Procedure section 1010.6(c), Defendant shall serve Plaintiff by mail since she is self-represented unless Plaintiff consented to service by email.

Moving to the merits of the motion, and after considering the untimely opposing papers, the Court finds that Plaintiff has not carried her burden and therefore the Motions are GRANTED.

A lis pendens will be expunged if: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) Thus, the party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.)

To overcome the motion to expunge, Plaintiff must establish “it is more likely than not it will obtain a judgment” on its real property claim. (Code of Civ. Proc., § 405.) Plaintiff’s showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.)

Here, Plaintiff has not established the probable validity of her real property claim by a preponderance of the evidence. As an initial matter, in her opposing papers, Plaintiff argues that the First Amended Complaint is the operative complaint. This is not so. Plaintiff’s First Amended Complaint was as is not reflected in this

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|  | <p>Case’s Register of Actions. As such, the Court will only consider the original (and operative) Complaint in analyzing these motions.</p> <p>The operative Complaint for declaratory relief, which was filed on 11/20/2025, asks the Court to for a judicial declaration that (1) Plaintiff is the vested owner of a 25% interest in the Irvine Property and (2) Plaintiff is the vested owner of a 50% interest in the Newport Beach Property.</p> <p>Given the record of evidence submitted by both parties, the Court is unable to determine that Plaintiff is more likely than not it will obtain a judgment. The record reflects competing evidence, the credibility of which the Court cannot determine on the papers. For this reason, the Motions are GRANTED.</p> <p>Defendant asks the Court to consider the Minute Order dismissing Plaintiff’s Petition in Case No. 2024 01408741. The Court will do so. Still, the impact of this Minute Order on Plaintiff’s ability to file and pursue this action appears to be without consequence since that dismissal was made without prejudice and is therefore not a final judgment on the merits such that future action on the same subject is barred. (Association of Irrigated Residents v. Department of Conservation (2017) 11 Cal. App. 5th 1202, 1220.)</p> <p>Moreover, the court finds that adequate relief can be secured to Plaintiff by the giving of an undertaking. (Code Civ. Proc., § 405.33.) Defendant shall provide an undertaking in the amount of _____. The parties shall be prepared to discuss a suitable undertaking at the hearing.</p> <p>Defendant’s request for attorney fees is GRANTED in the amount of \$760 per motion (2 hours at \$350/hour plus \$60) for a total of \$1,520 pursuant to Code of Civil Procedure section 405.38. (Code Civ. Proc., § 405.38.)</p> |
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|     |                                                                                                          | <p>Plaintiff's Requests for Judicial Notice are GRANTED. The Court notes, however, that a "court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (People v. Franklin (2016) 63 Cal.4th 261, 280.) In addition, while "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] do not take judicial notice of the truth of the factual matters asserted in those documents." (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400, as modified (Jan. 6, 2023) [emphasis in original].)</p> <p>The parties shall also be prepared to discuss the status of Case No. 2024 01408741 and whether this case should be stayed pending the resolution of Case No. 2024 01408741.</p> <p>Defendant to give notice</p> <p>3. Case Management Conference</p> |
| 106 | <p><b>Bake &amp; Rockfield, LLC vs. Monopoly Business Park Association</b></p> <p><b>22-01243053</b></p> | <p>1. Motion for Entry of Judgment</p> <p>Plaintiff Bake &amp; Rockfield, LLC ("Plaintiff") moves for an order entering judgment in its favor against defendant Monopoly Business Park Association ("Association") on Plaintiff's Declaratory Relief cause of action pursuant to the Court's November 14 and 18, 2025 Orders.</p> <p>The Court's November 14 and 18, 2025 Orders provide:</p> <p>1. The Association is obligated pursuant to the Declaration of Covenants, Conditions and Restrictions ("Project Declaration") to maintain the Common Area pursuant to the terms of the Project Declaration and Section 5.2 of Article 5 of the General Conditions, as</p>                                                                                                                                                                                                                                                                                                                                      |

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|  | <p>Amended by Section 8(c) of the Additional Provisions of the Ground Lease, dated June 15, 1979.</p> <p>2. The Court has the authority to hear evidence and decide if the Association met the standards for maintenance, repair, and replacement and will provide the Association's board the benefit of discretion only after the Association establishes it has performed a reasonable investigation and that the option it is choosing meets or exceeds the standards, and the Court has the authority to determine what is needed to meet the standards and to issue a Writ of Mandamus directing that such work be performed and the Association members be assessed to perform such work.</p> <p>3. Defendants' Motion Re: Capital Improvements and Motion in Limine No. 1 To Exclude All Evidence and Testimony Concerning the Replacement of Capital Improvements are DENIED. The Association is obligated to maintain, repair, and replace all common area components regardless of whether such maintenance, repair, and replacement involves a common area component that might be considered a capital improvement and the Association cannot avoid its obligation by arguing that the assessments are "Capital Improvement Assessments."</p> <p>In its Declaratory Relief cause of action, Plaintiff seeks a judgment declaring: a) that the scope of the Association's maintenance, repair, and replacement obligations encompasses the Needed Work alleged in the Complaint; b) the Association has the power and obligation to levy assessments upon Members in an amount sufficient to promptly perform the Needed Work and must enforce any such assessments through all legal means available and pursue and collect any unpaid amounts owing; c) the Association has a present and continuing duty to perform sufficient budgetary and reserve analyses and discharge its maintenance, repair, and replacement obligations under the Project Declaration and levy assessments; and d) the</p> |
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|  | <p>Association has a present and continuing duty to enforce the provisions of the Project Declaration relating to the non-maintenance related covenants complained of by Plaintiff in this action.</p> <p>Plaintiff asserts that it makes no sense to proceed to trial on the question of whether repairs proposed by the previous board members meet the maintenance, repair, and replacement standards because Plaintiff's officers now occupy two of the three board seats. Plaintiff contends that the foundational determination of the Association's obligations should be reduced to a judgment and said judgment should avoid possible later litigation on the same issues.</p> <p>By arguing that it makes no sense to proceed to trial on whether repairs proposed by the previous board, Plaintiff impliedly concedes that its Declaratory Relief cause of action is moot as to the issue of whether the scope of the Association's maintenance, repair, and replacement obligations encompass the Needed Work raised in the Complaint, given that Plaintiff now exercises majority control over the Association. Plaintiff nevertheless requests judgment on the Declaratory Relief cause of action which states in generic terms that the Association is obligated to maintain the Common Area pursuant to the terms of the Project Declaration and Section 5.2 of Article 5 of the General Conditions, as Amended by Section 8(c) of the Additional Provisions of the Ground Lease regardless of whether such maintenance, repair, and replacement involves a common area component that might be considered a capital improvement. Plaintiff contends a judgment would avoid future litigation. However, controversies that are conjectural or only anticipated to occur in the future do not qualify for declaratory relief. (Wilson &amp; Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1582.) What Plaintiff seeks by its Motion is essentially protection from possible future issues regarding the Association's maintenance, repair, and replacement standards. This is</p> |
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|            |                                                                                      | <p>not proper grounds for a judicial declaration. (See id. at p. 1583.)</p> <p>In light of the above, the Motion is DENIED.</p> <p>Moving party to give notice</p> <p>2. Order to Show Cause re: Appointment of Counsel re: Monopoly Business Park Association</p>                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>107</b> | <p><b>Szeto vs. Woo</b></p> <p><b>19-01087212</b></p>                                | <p>Motion to Clarify and Enforce Fee Awards</p> <p>Plaintiff/cross-defendant Gene Szeto moves for an order clarifying the Court’s February 3, 2026 order granting him attorney’s fees and setting a deadline for the payment of the award. Szeto argues that a set date for payment is required to prevent EQD LLC and Kent Salveson from evading payment by arguing that there is no due date.</p> <p>The Motion is unopposed and GRANTED. The February 3, 2026 award of attorney’s fees and costs to Szeto with regard to his anti-SLAPP motion against EQD LLC and Salveson’s Cross-Complaint is to be paid within 60 days of the date of this order.</p> <p>Moving party to give notice.</p> |
| <b>108</b> | <p><b>Wells Fargo Bank, N.A. vs. Thru Trading Inc.</b></p> <p><b>23-01311998</b></p> | <p>Motion Directing Distribution of Interpleaded Funds</p> <p>Defendant/cross-complainant Cheryl R. Royce (“Defendant”) moves for an order directing that the interpleaded funds deposited with the Court by plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”) be distributed to her in light of the judgment entered in her favor on her Cross-Complaint against cross-defendant Thru Trading, Inc. (“Thru Trading”).</p> <p>An interpleader action has two phases. In the first phase, the trial court determines the right of the</p>                                                                                                                                                          |

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|            |                                                                      | <p>plaintiff to interplead the funds. (Hood v. Gonzales (2019) 43 Cal.App.5th 57, 71.) In the second phase, the trial court has the power to adjudicate the issues raised by the interpleader, including the disposition of the interpleaded funds. (Id. at p. 72.)</p> <p>Wells Fargo filed this action for interpleader on March 7, 2023, and after deducting its attorney fees and costs, interpleaded with the Court funds in the amount of \$24,034.65. Defendant filed a Cross-Complaint against Thru Trading for financial elder abuse, fraud, money had and received, conversion, and unjust enrichment and has obtained judgment in her favor thereon in the amount of \$54,907.20, exclusive of recoverable costs. The judgment in Defendant's favor exceeds the total amount of the interpleaded funds. Thus, the Court finds that Defendant has established a right to the interpleaded funds in their entirety. Accordingly, the Motion is GRANTED.</p> <p>Defendant to give notice.</p> |
| <b>109</b> | <p><b>City of Westminster vs. West</b></p> <p><b>24-01443472</b></p> | <ol style="list-style-type: none"> <li>1. Motion to Compel Answers to Form Interrogatories</li> <li>2. Motion to Compel Production</li> <li>3. Motion to Deem Facts Admitted</li> </ol> <p>Motion to Compel Further Response to Form Interrogatory</p> <p>Plaintiff, City of Westminster (the "City"), moves for an order compelling Defendant, Amy Phan West ("Defendant"), to provide a further verified supplemental response to the City's Form Interrogatory No. 15.1, and awarding monetary sanctions in the amount of \$4,350 against Defendant and/or her counsel of record.</p> <p>No opposition has been filed.</p>                                                                                                                                                                                                                                                                                                                                                                         |

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|  | <p>With respect to the timing requirement, Code of Civil Procedure section 2030.300, subdivision (c), specifically provides: “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” The 45-day time limit is extended for service by mail, overnight delivery, or fax, or electronic mail in accordance with Code of Civil Procedure sections 1010.6(a)(3), 1013.</p> <p>Here, Defendant served the subject verified supplemental response on January 26, 2026. (ROA 90, Declaration of Ajit S. Thind (“Thind Decl.”), ¶ 7, Ex. E.) The instant motion was filed on March 4, 2026, and was timely filed within 45 days.</p> <p>A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc. § 2030.300(b).) The City has made adequate good faith efforts to meet and confer prior to filing this motion. (Thind Decl., ¶¶ 5-9, Exs. D-G.)</p> <p>Code of Civil Procedure section 2030.300(a) provides that a party propounding discovery may move for an order compelling a further response if an answer to a particular interrogatory is evasive or incomplete, or an exercise of the option to produce documents under Code Civ. Proc. section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. The motion must be accompanied by a meet and confer declaration under Code. Civ. Proc. Section 2016.040. (Code Civ. Proc. § 2030.300(b).)</p> <p>Each answer in a response to interrogatories shall be as complete and straightforward as the information</p> |
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|  | <p>reasonably available to the responding party permits. (Code Civ. Proc. § 2030.220(a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (Code Civ. Proc. § 2030.220(b).)</p> <p>Defendant’s verified supplemental response dated January 23, 2026, is not complete and straightforward as it does not identify each of Defendant’s 17 affirmative defenses alleged in Defendant’s Answer. The response does not state all facts upon which Defendant bases each denial or special or affirmative defense, does not state the names, address, and telephone numbers of all persons who have knowledge of those facts for each denial or special or affirmative defense, and does not identify all documents and other tangible things that support Defendant’s denial or special or affirmative defense and does not state the name, address, and telephone number of the person who has each document. (Exs. E and H to Thind Decl.) Thus, the Court GRANTS the motion to compel a further verified response.</p> <p>Defendant to serve a further verified response to Form Interrogatory, No. 15.1, within 30 days.</p> <p>The City requests a monetary sanction in the amount of \$4,350 against Defendant and/or her counsel.</p> <p>Code of Civil Procedure section 2030.300(d) provides: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”</p> <p>\$4,350 consists of six (6) hours for the moving papers and anticipated four (4) hours for the opposition, reply, and attending the hearing, at \$435 per hour. (Thind Decl., ¶¶ 12-14.) There are no opposition and no need</p> |
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for a reply. In light of the ruling on the motion, the Court GRANTS a reduced monetary sanction in the amount of \$1,305 against Defendant, to be paid within 30 days. Three (3) hours to draft the moving papers and appear at the hearing are reasonable. There is no showing that Defendant acted with substantial justification or the other circumstances would render the imposition of the sanction unjust. To the extent that the City seeks monetary sanctions against Defendant's counsel, insufficient notice is given. The individual or party against whom the sanctions are sought must be identified in the notice of motion and supported by evidence. (Weinstein v. Blumberg (2018) 25 Cal.App.5th 316, 321; Corralejo v. Quiroga (1984) 152 Cal.App.3d 871, 874 [order imposing sanctions on attorney reversed where notice of motion did not clearly provide that sanctions were being sought against attorney].)

#### Motion to Compel Compliance

Plaintiff, City of Westminster (the "City"), moves for an order compelling Defendant, Amy Phan West ("Defendant"), to comply with her Third Supplemental Response to the City's Request for Production ("RFP") No. 1, and awarding monetary sanctions in the amount of \$3,480 against Defendant.

No opposition has been filed.

Code of Civil Procedure section 2031.320(a) provides that a party may move for an order compelling compliance if a party serving a response to an inspection demand thereafter fails to permit inspection in accordance with that party's statement of compliance.

Here, the City's counsel provides that Requests for Production of Documents ("RFP"), Set One was served on September 17, 2025, and that on March 16, 2026, Defendant served third supplemental verified responses to the RFP which identified two records, WEST

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|  | <p>1000075783 and WEST 1000077132, which were not produced. (ROA 111, Declaration of Ajit S. Thind (“Thind Decl.”), ¶¶ 2, 8-13, Exs. A, F-G.) Based on the foregoing, the Court GRANTS the City’s motion to compel compliance.</p> <p>Defendant to produce WEST 1000075783 and WEST 1000077132 within 30 days.</p> <p>The City requests sanctions in the amount of \$3,480 against Defendant.</p> <p>“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.320(b).) “The purpose and effect of sections 2031.030(a) and 2031.320(b) is not to punish but to compensate a litigant for costs that litigant incurred as a result of another litigant’s misuse of the discovery process.” (Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1151.)</p> <p>\$3,480 consists of five (5) hours on this motion and an anticipated three (3) hours to review the opposition, prepare a reply brief and attend the hearing at \$435 per hour. (Thind Decl., ¶¶ 14-16.) In light of the ruling on the motion, the Court GRANTS a reduced monetary sanction in the amount of \$1,305 against Defendant, to be paid within 30 days. Three (3) hours to draft the moving papers and appear at the hearing are reasonable. There is no showing that Defendant acted with substantial justification or the other circumstances would render the imposition of the sanction unjust.</p> <p>Motion to Deem Requests for Admission, Set Two, Admitted</p> |
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|  |  | <p>Plaintiff, City of Westminster (the “City”), moves for an order deeming the truth of all matters specified in Requests for Admission, Set Two, served on Defendant Amy Phan West (“Defendant”) on April 30, 2026, and awarding monetary sanctions in the amount of \$2,175 against Defendant.</p> <p>No opposition has been filed.</p> <p>Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc. § 2033.280(a)-(b).) The court shall deem the matters admitted “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).)</p> <p>Here, on April 30, 2026, the City’s counsel served the City Requests for Admission, Set Two, on Defendant, by e-mail and U.S. Mail. (ROA 142, Declaration of Ajit S. Thind (“Thind Decl.”), ¶¶ 3-4, Exs. A-B.) Defendant’s new counsel, Zachary McCready, filed a Substitution of Attorney form on May 4, 2026, and on May 9, 2026, a courtesy copy of this discovery was served on Defendant’s new counsel. (Thind Decl., ¶ 5, Ex. C.) Defendant’s deadline to respond was June 2, 2026, and no response has been received from Defendant or her counsel, despite emails to Defendant’s new counsel inquiring about the Requests for Admission, Set Two. (Thind Decl., ¶¶ 6-7, Ex. D.)</p> <p>As a result of defendant’s failure to serve responses to the requests, defendant has “waive[d] any objection to the requests, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc. § 2033.280(a).) The Court GRANTS the City’s motion to</p> |
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|            |                                                                                  | <p>deem Requests for Admission, Set Two, admitted as against Defendant.</p> <p>The City requests a monetary sanction in the amount of \$2,175, which consists of three (3) hours to draft the moving papers, and an anticipated two (2) hours to review the opposition, prepare a reply, and attend the hearing, at \$435 per hour. (Thind Decl., ¶¶ 9-11.)</p> <p>Pursuant to Code of Civil Procedure section 2033.280(c), “[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion.” Because Defendant’s failure to serve a response to the City’s Requests for Admission, Set Two, necessitated the filing of the instant motion, the Court GRANTS a reduced monetary sanction in the amount of \$870 against Defendant, to be paid within 30 days. Two (2) hours to draft the moving papers and appear at the hearing are reasonable. To the extent that the City seeks monetary sanctions against Defendant’s counsel, no such request is made in the notice of motion.</p> <p>The City to give notice.</p> |
| <b>110</b> | <p><b>American Express National Bank vs. Nasif</b></p> <p><b>25-01471543</b></p> | <p>Motion for New Trial x 2</p> <p>Defendants Mahir Nasif and Mega World Builder Corp. (collectively, “Defendants”) move for new trial of the court’s order granting Plaintiff, American Express National Bank’s motion for summary judgment. The Motion for New Trial is DENIED.</p> <p>“The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute. [Citation.]” (Fomco, Inc. v. Joe Maggio, Inc. (1961) 55 Cal.2d 162, 166.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|  |  | <p>Code of Civil Procedure section 657 sets forth the statutory grounds.</p> <p>Pursuant to the Amended Notice of Intention to Move for New Trial (“Amended Notice of Intent”), Defendants move for new trial of the judgment entered on May 20, 2026, granting</p> <p>Plaintiff’s motion for summary judgment, based on nine grounds.</p> <p>Two of the grounds set forth in the Amended Notice of Intent are not statutory grounds, namely, “[i]mproper orders of the court,” and “[a]buse of discretion by the court.” As these are not statutory grounds for a motion for new trial, they cannot be grounds for granting a motion for new trial. An order granting a new trial is in excess of jurisdiction if it is made on a ground not prescribed by statute, upon a notice of intention that is filed prematurely or too late, or is not served on an adverse party, or if the court purports to grant the motion after expiration of the statutory time for ruling. (Kabran, supra, 2 Cal.5th at pp. 336-337; Siegal v. Superior Court of Los Angeles County (1968) 68 Cal.2d 97, 99-102.)</p> <p>As to the remaining grounds, Defendants only argue and address the grounds for motion for new trial involving accident or surprise that ordinary prudence could not have guarded against (Code Civ. Proc. §657(3)), and error in law (Code Civ. Proc. §657(7)).</p> <p>“Section 657 by its terms requires the trial court to weigh the evidence and consider the entire record. [Citation.]” (Casella v. Southwest Dealer Services, Inc. (2007) 157 Cal.App.4th 1127, 1159.) “Ordinarily, a trial court has complete discretion in ruling on a motion for a new trial. Its ruling will not be disturbed absent an abuse of discretion. [Citations.]” (Schelbauer v. Butler Manufacturing Co. (1984) 35 Cal.3d 442, 452.)</p> |
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|  |  | <p>As to the ground for a motion for new trial due to accident or surprise that ordinary prudence could not have guarded against, Defendants contend that they were unexpectedly placed in a situation where Mahir Nasif was on a plane and unable to execute his declaration in support of Defendants' opposition to Plaintiff's motion for summary judgment on the day the opposition was due to be filed as Mahir Nasif was unexpectedly on a plane on the day that he was to execute the declaration, and Defendants' counsel, James Benedetto was shocked and surprised when he learned that Mahir Nasif had been on a plane the day that the declaration was due to be filed. Defendants additionally contend that they made it known to the court, in its amended opposition and supplemental declarations, and that Defendants took prompt action by filing the opposition timely and then filing an amended opposition as soon as possible given the circumstances.</p> <p>“ ‘The terms “accident” and “surprise,” although not strictly synonymous, have, as used in legal practice, substantially the same meaning, as each is used to denote some condition or situation in which a party to a cause is unexpectedly placed, to his injury, without any default or negligence of his own [citation], which ordinary prudence could not have guarded against [citation.]’ [Citations.]” (Kauffman v. De Mutiis (1948) 31 Cal.2d 429, 432.)</p> <p>“ ‘ “Surprise” as a ground for a new trial denotes some condition or a situation in which a party to an action is unexpectedly placed to his detriment. The condition or situation must have been such that ordinary prudence on the part of the person claiming surprise could not have guarded against and prevented it. Such party must not have been negligent in the circumstances.</p> <p>[Citation.]’ [Citation.]” (Hata v. Los Angeles County Harbor/UCLA Medical Center (1995) 31 Cal.App.4th 1791, 1806, overruled on other grounds in Quigley v.</p> |
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|  | <p>Garden Valley Fire Protection Dist. (2019) 7 Cal.5th 798.)</p> <p>A motion for new trial on the ground of accident or surprise “must make a showing of injury, a showing of diligence, and a showing that he did not unduly delay seeking redress.” (Fletcher v. Pierceall (1956) 146 Cal.App.2d 859, 866.)</p> <p>Here, Defendants submit the Declarations of Mahir Nasif in support of both motions, which provides that Defendants’ counsel informed Defendant Nasif that the opposition to the motion for summary judgment would include a declaration from Nasif; that on February 9, 2026, Nasif and Defendants’ attorney discussed the contents of the declaration to be prepared; that on February 11, 2026, Nasif unexpectedly had to return back to the United States and was on a 16-hour flight from Dubai to Los Angeles; and that as a result, Nasif was unable to communicate with counsel who attempted contact Nasif to execute the declaration discussed on February 9, 2026. (ROA 107, 113, Declarations of Mahir Nasif, ¶¶ 2-7.)</p> <p>Defendants also submit the Declarations of James Benedetto, counsel for Defendants, which provide the same information as that contained in the Declarations of Mahir Nasif. (ROA 109, 111, Declarations of James Benedetto, ¶¶ 3-8.) Defendants’ counsel also states, “I was shocked and surprised when I was unable to contact Defendant’s President Mahir Nasif to execute his declaration that we had discussed in the February 9, 2026, conversation,” and that “I was shocked and surprised when I learned that Defendant’s President Mahir Nasif when I learned was on a flight on February 9, 2026.” (ROA 109, Declaration of James Benedetto, ¶¶ 9-10.) Defendants’ counsel also provides that he believes that he used “ordinary prudence in advising Defendant’s President Mahir Nasif on February 9, 2026, that his declaration would be needed to support Defendant’s opposition,” and that he does not “believe ordinary prudence could have prevented this surprising</p> |
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|  | <p>event that Defendant’s President Mahir Nasif unexpectedly had to board a 16 hour flight.” (Id., ¶¶ 11-12.)</p> <p>While Defendant Mahir Nasif’s flight on February 11, 2026, which prevented Defendants’ counsel from being able to contact him about the declaration that was to be filed in support of the opposition to the motion for summary judgment may have been unexpected, the inability to timely file of the declaration in support of the opposition to the motion for summary judgment is one which could have been guarded against or prevented. The declarations filed in support of the motion are silent as to whether and why the declaration could not have been obtained on February 9, or February 10. The evidence submitted does not show that Defendants were not negligent under these circumstances. Based on the foregoing, there was no accident or surprise that ordinary prudence could not have guarded against.</p> <p>As to the ground for a motion for new trial due to error in law (Code Civ. Proc. §657(7), Defendants filed no minutes of the court in support of the motion for the court to consider. However, Plaintiff submitted the Minute Order dated March 3, 2026, granting Plaintiff’s motion for summary judgment, which is at issue. (ROA 130, Declaration of Eric J. Jun, ¶ 2, Ex. A.)</p> <p>Defendants contend that the Court’s ruling that the date of the breach is not an element of the cause of action is erroneous because breach is an element of Plaintiff’s sole cause of action for breach of contract, and that the Court erroneously concluded that the evidence established that about June 18, 2024, Defendants failed to make payments owed on the account, which supports the allegations in the Complaint because Plaintiff’s declaration in support of the motion for summary judgment states the opposite stating that the last payment made, occurred on June 18, 2024, such that the evidence presented established that no breach could</p> |
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|  | <p>have occurred on June 18, 2024, because a payment was made on June 18, 2024.</p> <p>“[A] trial court has no discretion to grant a new trial on the basis of error in law unless its original ruling was erroneous as a matter of law. [Citation.]” (Tun v. Wells Fargo Dealer Services, Inc. (2016) 5 Cal.App.5th 309, 323.)</p> <p>Initially, as to the contention that the Court erred in stating that the date of breach is not an element of a claim for breach of contract, Defendants cite to no authority for the proposition that the date of breach is an element of a cause of action for breach of contract. (Motion, 7:1-3.) Arguments not supported by authority are waived. (See Evans v. CenterStone Development Co. (2005) 134 Cal.App.4th 151, 165 [issues mentioned “without fully or properly briefing them” are waived]; Mission Shores Assn. v. Pheil (2008) 166 Cal. App. 4th 789, 796 [noting that “every brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived and pass it without consideration. [Citations.]”]; Amato v. Mercury Casualty Co. (1993) 18 Cal.App.4th 1784, 1794 [legal proposition not supported by authority is forfeited].)</p> <p>Case law provides that “the elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)</p> <p>The argument that the Court erred in granting summary judgment because breach was not properly at issue as the Complaint did not allege that that Defendants breach occurred at some point after June 18, 2024, is without merit. Defendants concede that the Complaint alleges that Defendants breached the agreement “on or about June 18, 2024,” yet ignores the word, “about.”</p> |
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|  |  | <p>(ROA 123, 124, Motions for New Trial, 4:23-25.) The Complaint does not allege an exact date that Defendants breached the agreement as it alleges that the breach occurred “on or about June 18, 2024.” Plaintiff’s declaration in support of the motion states that the last posted payment occurred on June 18, 2024, which indicates that Defendants breached the agreement after June 18, 2024, yet close in time to June 18, 2024, which would be encompassed by the allegation that the Defendants breached the agreement “about June 18, 2024.” (ROA 29, Declaration of Mehdi Touhidi, ¶ 13.) Based on the foregoing, there was no error in law in granting summary judgment in favor of Plaintiff.</p> <p>Plaintiff to give notice.</p> |
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